

25STCP00154 25STCP00154

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Case Number: 25STCP00154 Hearing Date: September 10, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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LA BREA WASHINGTON CO. LLC,

Petitioner(s),

vs.

CITY OF

SANTA MONICA, et al.,

Respondent(s).

Case No.:

25STCP00154

Hearing Date:

September 8, 2026

[TENTATIVE] ORDER RE:

MOTION FOR BOND UNDER CCP § 529.2

Real party in interest Hollywood

Community Housing Corporation ("RPI") seeks to require petitioner/plaintiff La Brea Washington Co., LLC ("Petitioner") to post a \$500,000 bond under Code of Civil Procedure ("CCP")^[1] section 529.2.

The motion is granted.

I.

Background

This matter involves two related actions filed by Petitioner La Brea Washington Co., LLC: (1) "Petition for Writ of Administrative Mandamus (CEQA)" ("Petition 154") in case no. 25STCP00154 ("Case 154") challenging the City of Santa Monica's ("City") CEQA determinations for an affordable-housing project proposed at 1217 Euclid Street; and (2) "Petition for Writ of Mandamus for Violations of Due Process and the Government Code and Complaint for Quiet Title" ("Petition 961") in case no. 25STCP00961 ("Case 961"), challenging the City's approval process for the same project and asserting additional property-related claims.

Respondent City and its City Council (collectively, "Respondent") are defendants and respondents in both matters, and Hollywood Community Housing Corporation ("RPI") is the real party in interest in both matters.

Petition 154 centers on Petitioner's allegation that the City failed to properly evaluate environmental impacts of the affordable-housing project, including potential effects on the historic Wilshire Theater and nearby parking, when issuing a Notice of Exemption under CEQA Guidelines sections 15182 and 15061(b)(3). Petitioner also challenges the City's reliance on the previously certified Housing Element EIR and Addendum, which addressed program-level impacts of the Housing Element and acknowledged that site-specific impacts would be reviewed at the project level.

Petition 961 asserts that the City's approval of the project violated a 1954 deed restriction requiring the Property to be used for public purposes, that the City failed to provide

adequate notice regarding elimination of public parking, and that the project would adversely affect Petitioner's adjacent historic Wilshire Theater.

Petitioner also challenged aspects of the City's RFP process, replacement parking considerations, and the City's December 17, 2024 approval of development agreements and ground leases for the affordable housing project, which includes demolition of approximately 100 public parking spaces and construction of 130 affordable units.

Both petitions arise from the same affordable housing project and assert that the City's CEQA compliance, procedural conduct, and decisions regarding public parking were improper.

1.

Procedural History

Petitioner filed Petition 154 on January 16, 2025, and Petition 961 on March 14, 2025. Both matters proceeded before various judicial officers due to reassignment and a peremptory challenge, and were ultimately related and assigned to Judge James C. Chalfant.

Respondent and RPI filed special motions to strike each petition under section 425.19. The Court granted Special Motion 154 on June 9, 2025, and granted Special Motion 961 on July 29, 2025. The Court then consolidated both cases, designated Petition 154 as the lead case, and directed preparation of judgment.

Judgment dismissing both petitions was entered on August 15, 2025, and an Amended Judgment was entered on August 25, 2025. Petitioner filed a notice of appeal from the judgment on October 14, 2025.

On November 18, 2025, the Court granted Respondent and RPI's motion for attorney fees, awarding a total of \$548,911.30. Petitioner filed a notice of appeal from that order on January 21, 2026.

RPI filed the present motion for a bond under CCP section 529.2 on June 26, 2026. Petitioner filed opposition on August 25, 2026, and RPI filed its reply on August 31, 2026.

II.

Evidentiary Matters

1.

Request for Judicial Notice

RPI requests judicial notice of

Petitioner's[2]

opening brief filed in appeal from this case, Appellate Case No. B350347

("Appeal") (RPI RJN Ex. A). The request is granted. (Evid. Code § 452(d).)

Petitioner requests judicial

notice of the following exhibits: (1) Petitioner's opening brief in the Appeal

(Pet. RJN Ex. 1); (2) the Court's denial of RPI's[3]

request to rule on its motion to dismiss (Pet. RJN Ex. 2); and (3) the Amended

Judgment in this case entered August 25, 2025 (Pet. RJN Ex. 3.)

As the Court ruled for RPI's

request for judicial notice, Request 1 is granted. (Evid. Code § 452(d).)

Request 2 is likewise granted. (Evid. Code § 452(d).) The Court need not take

judicial notice of its Amended Judgment entered in this case. Request 3 is

therefore denied.

2.

Evidentiary Objections

Petitioner lodges 44 objections

to the Senna Declaration, objecting to every paragraph except the first two,

despite Senna's statement that the matters declared are within her personal

knowledge and her role as CEO of RPI. As courts have recognized, "objecting to

every single thing with no display of professional judgment or restraint is an

abusive practice." (Cohen v. Kabbalah Centre Internat., Inc. (2019) 35

Cal.App.5th 13.) Many of Petitioner's objections challenge facts Petitioner

itself alleges. (See Senna Decl., ¶ 3; Pet. 961, ¶ 78.)

The objections are largely

boilerplate recitations of evidentiary grounds without explanation. Forty-three

of the 44 objections invoke the best evidence rule (Evid. Code, §§ 1520, 1521,

1523(a)), even though most challenged statements do not reference any document.

Thirty-eight objections claim lack of foundation, personal knowledge, or

speculation (Evid. Code, §§ 403, 405, 702(a), 800, 802), notwithstanding

Senna's express foundation. Petitioner also asserts authentication objections

(Evid. Code, § 1400) to non-documentary facts, and hearsay objections (Evid. Code, § 1200) where no out-of-court statements are offered. Scattered objections for argument, legal conclusion, and vagueness are similarly unsupported. Petitioner further objects to the balance of the declaration on relevance, despite its direct relation to the Project's low-income housing status and alleged harm related to delay.

All objections are overruled. Any legal conclusions in the Senna Declaration will be disregarded.

RPI objects to portions of the Netty Declaration. Objection No. 3 to paragraph 4 is sustained as to the statement that the bond "would cause extreme hardship," which is a legal conclusion. Objection No. 4 is sustained only as to the word "significant" in characterizing the appeal. The remaining objections concern weight rather than admissibility and are overruled.

RPI also objects to portions of the Fong Declaration, including assertions that certain statements are "incorrect," which is not a proper evidentiary objection. Objection No. 3 to paragraph 6 is sustained only as to the word "timely," a legal conclusion. All other objections are overruled.

Petitioner objects to portions of the Paster Declaration, repeating the same boilerplate approach described above. Petitioner also objects on the ground that certain statements reflect settlement discussions. Settlement communications outside mediation are inadmissible only when offered to prove liability or the validity of a claim. (HMS Capital, Inc. v. Lawyers Title Co. (2004) 118 Cal.App.4th 204.) RPI offers the statements for a different purpose, and the objections are therefore overruled.

All evidence is admitted subject to appropriate weight.

III.

Discussion

1.

This Court has Jurisdiction

Proceedings that seek to enforce, vacate, or modify an appealed judgment, or that substantially interfere with an appellate court's ability to conduct an appeal, are stayed. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189-90 ["*Varian*").) RPI asserts that a motion under section 529.2 is a collateral proceeding over which the Court retains jurisdiction; Petitioner asserts the bond requires findings "intertwined with the merits of the pending appeal" such that ruling now would "overlap with, and potentially conflict with," the Court of Appeal's review. (Mot. at 10; Opp. at 4.)

Petitioner's argument does not frame the governing standard. The Court finds no authority specifically discussing its jurisdiction to hear a motion under section 529.2 pending appeal, so a more thorough discussion of the basic rule is warranted. Section 916 provides that perfecting an appeal stays proceedings "upon the judgment or order appealed from or upon the matters embraced therein or affected thereby," including enforcement of the judgment. (§ 916(a).) The statute specifically provides that the trial court "may proceed upon any other matter embraced in the action and not affected by the judgment order." (*Ibid.*)

The Supreme Court in *Varian* explained that section 916's purpose is "to protect the appellate court's jurisdiction by preserving the status quo" and preventing trial court proceedings that may "affect" the appealed judgment. (*Varian*, *supra*, 35 Cal.4th at 189, quoting *Elsea v. Saberi* (1992) 4 Cal.App.4th 625, 629 ("*Elsea*").) A matter is "embraced in" or "affected by" the judgment if post judgment proceedings on that matter would have any effect on the effectiveness of the appeal. (*Varian* at 189, citing *In re Marriage of Horowitz* (1984) 159 Cal.App.3d 377, 381 ("*Horowitz*").) Proceedings that do not affect the appeal's effectiveness are not stayed. (*Varian* at 190, quoting *Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938 ("*Betz*").

The Supreme Court further clarified that the fact that a post judgment order may moot an appeal is not, by itself, enough to establish that such proceeding "affects the effectiveness of the appeal and should be stayed under section 916. Rather, something more is needed." (*Varian* at 189.) A proceeding warrants a stay only where (a) it directly or indirectly seeks to enforce, vacate, or modify the appealed judgment; (b) substantially interferes with the appellate court's ability to conduct the appeal; (c) the possible outcomes of the appeal and

proceeding are irreconcilable; or, (d) the purpose of the appeal is to avoid the proceeding. (Varian at 189-90; Elsea, *supra*, 4 Cal.App.4th at 629; *Hollaway v. Scripps Memorial Hosp.* (1980) 111 Cal.App.3d 719, 723-724; *In re Marriage of Varner* (1998) 68 Cal.App.4th 932, 937; *Prudential-Bache Securities, Inc. v. Superior Court* (1988) 201 Cal.App.3d 924, 925.)

Thus, ancillary or collateral matters are not stayed. (Varian at 191, citing *Betz, supra*, 16 Cal.App.4th at 938.) Classic examples include motions for new trial and motions to expunge a *lis pendens*, even though the latter requires assessing the claimant's likelihood of prevailing on the merits. (Varian at 191, citing *In re Estate of Waters* (1919) 181 Cal. 584, 587; *Neff v. Ernst* (1957) 48 Cal.2d 628, 634; *United Professional Planning, Inc. v. Superior Court* (1970) 9 Cal.App.3d 377, 383-386 ("United Professional Planning").) A proceeding is collateral if it could occur regardless of the outcome on appeal. (Varian at 191, citing *Horowitz, supra*, 159 Cal.App.3d at 383.)

Attorney fee motions are ancillary or collateral. (E.g. *In re Marriage of Sherman* (1984) 162 Cal.App.3d 1132, 1140 ["*Sherman*"].) Prohibitory injunctions also generally proceed notwithstanding the appeal because they preserve, rather than alter, the status quo. (*Daly v. San Bernardino County Bd. of Supervisors* (2021) 11 Cal.5th 1030, 1035 ["*Daly*"]; *Dewey v. Superior Court* (1889) 81 Cal. 64, 68; *Heinlen v. Cross* (1883) 63 Cal. 44, 46; *Merced Mining Co. v. Fremont* (1857) 7 Cal. 130, 132 ["*Merced Mining*"].) Section 916 also contains statutory exceptions for matters the Legislature chose not to stay, including enforcement of monetary judgments and provisional remedies conditioned on undertakings. (§§ 917.1, 917.5, 917.65.)

The matters deemed ancillary or collateral or otherwise exempted by statute suggest a few general principles. The legislature did not create section 916 to stay monetary awards. (See *Sherman*, §§ 917.1.) The legislature also favors undertakings as security for judgments when enforcement is stayed. (See §§ 917.1-917.9.) The legislature prefers not to disturb provisional remedies. (See §§ 917.5, 917.65; *Merced Mining, supra*, 7 Cal. 130, 132 ["The language of [the predecessor statute] is general, and would at first seem to include the appeal from an order granting an injunction; but, upon an examination of the provisions of [the predecessor statute], it will be seen, that in all those cases the party is required by the judgment or

order to do some affirmative act, not to refrain from doing a thing.”]; Daly, supra, 11 Cal.5th 1030, 1040 [approving Merced Mining].)

Section 529.2 provides a provisional remedy, namely, an undertaking designed to protect a developer from costs arising from a meritless action challenging a low- or moderate-income housing project. (§ 529.2.) The most analogous proceeding is a motion to expunge a lis pendens, which also requires evaluation of the probable validity of the underlying claim yet is treated as collateral to the appeal. (United Professional Planning, supra, 9 Cal.App.3d at 383-386.)

Petitioner's sole jurisdictional argument is that the bond motion “turns on findings that are intertwined with the merits of the pending appeal.” (Opp. at 4.) Therefore, Petitioner argues, “[d]eciding [those issues] now would necessarily overlap with, and potentially conflict with, the issues now before the appellate court.” (Ibid.) But this argument would apply equally to lis pendens proceedings, and yet those are collateral. A section 529.2 motion does not enforce, vacate, or modify the judgment; does not interfere with the appellate court's ability to resolve the appeal; does not produce an outcome irreconcilable with the appeal; and is not the type of proceeding the appeal seeks to avoid. Indeed, but for the appeal, the bond motion would be unnecessary.

For these reasons, the Court concludes that a motion under CCP section 529.2 is an ancillary or collateral matter. The Court therefore retains jurisdiction to decide it.

2.

Merits

a.

Petitioner Has Shown Grounds for the Motion

CCP section 529.2 permits a defendant to seek a bond where five conditions are met: (1) the plaintiff brings a civil action to challenge a housing project that qualifies as a “development project” under Government Code section 65928; (2) the project meets or exceeds the requirements for low- or moderate-income housing under Government Code section 65915; (3) the plaintiff seeks relief, including but not limited to injunctive relief, which has the effect of preventing or

delaying the project; (4) the action is without merit; and (5) the action was brought in bad faith, vexatiously, for the purpose of delay, or to thwart the low- or moderate-income nature of the housing development project. (§ 529.2(a).)

Petitioner does not dispute the first three statutory elements, namely, that the Project qualifies under Government Code sections 65928 and 65915, and that the relief it seeks would delay the Project. The issues, therefore, are the fourth and fifth elements, i.e., whether the action is without merit, and whether it was brought for an improper purpose. (§ 529.2(a).)

This Court previously issued detailed rulings granting Special Motion 154 and Special Motion 961. Here is a summary of the pertinent findings:

For Petition 961, the quiet title cause of action failed because Petitioner did not file a lis pendens, did not include a legal description of the Property or adverse claimants, and did not seek quiet title relief. Petitioner asserted no ownership interest and later disclaimed the claim. The second cause of action for “failures to comply” is not a legally recognized cause of action and was waived when Petitioner declined to defend it. The third cause of action was substantively a due process claim, but Petitioner disclaimed any property interest and thus could not state either procedural or substantive due process. The challenged decision was quasi-legislative, eliminating any procedural notice requirement. In short, Petition 961 was facially defective: two causes of action depended on a property interest Petitioner disclaimed, and one was not a cognizable claim.

For Petition 154, Petitioner’s first and third CEQA causes of action were time-barred because the statute of limitations to challenge the Housing Element EIR expired years earlier. Even assuming review could proceed under a tiered-EIR or “new information” framework, the Housing Element EIR expressly analyzed the environmental effects Petitioner claims were overlooked, including impacts from redevelopment of parking lots adjacent to historic resources. It found such impacts significant and unavoidable. The EIR contemplated affordable development on the Property and identified the Wilshire Theater as historic. Petitioner offered no evidence that the Project fell outside the scope of the Housing Element EIR. Respondent lacked discretion to require replacement parking, making parking impacts not

subject to CEQA mitigation review. Petitioner's asserted economic impacts are non-environmental as a matter of law. The second CEQA cause of action failed because Respondent did not rely on the "common sense" exemption Petitioner challenged.

While the Court's extensive analysis may suggest the first and third causes of action had some merit but were ultimately unlikely to succeed, that is not the case. The record demonstrates these claims were independently unsupported and legally deficient. The gravamen of Petitioner's CEQA challenge was that Respondent failed to analyze impacts to the Wilshire Theater from reduced parking. That claim is contradicted by the Housing Element EIR's existing program level analysis of parking-related impacts to historic resources, and the City's lack of discretion regarding parking requirements. Thus, all CEQA claims lacked merit.

The record also supports the conclusion that the petitions were filed for the purpose of delay.

A lack of objective merit may support an inference of improper purpose. (*Save Livermore Downtown v. City of Livermore* (2024) 87 Cal.App.5th 1116, 1135, 1138 ["Save Livermore"].) Petition 154 presented a facial CEQA challenge, but Petition 961, filed two months later, consisted exclusively of claims that were facially defective. Petitioner repeatedly delayed proceedings, including filing Petition 154 near the end of the limitations period, seeking an extension for preparation of the record, exercising a peremptory challenge on the last permissible day (vacating the scheduled hearing on Special Motion 154), and waiting roughly 50 of 60 days to file its appeal. Petitioner then failed to timely pay required appellate transcript fees, resulting in a default notice.

RPI identifies the foregoing acts, and Petitioner offers no rebuttal. Petitioner also does not affirmatively state, even in conclusory form, that it is not litigating for delay.[4]

In reply,[5]

RPI submits evidence that Petitioner's principal, Netty, stated he intended to prolong proceedings to prevent the project from moving forward absent settlement on his preferred terms. (Paster Decl., ¶¶ 4-5.) Petitioner objected to the evidence but did not dispute its substance.

Considering the weakness of the claims, Petitioner's litigation conduct, and the unrebutted evidence of intent, the Court finds that Petitioner initiated and maintained this action for the purpose of delay. Accordingly, RPI has shown the grounds for a bond motion under CCP section 529.2.

b.

Amount of the Undertaking

If the defendant establishes the grounds for imposing a bond, the court shall order the plaintiff to file the undertaking in an amount specified as security for the defendant's costs and damages. (§ 529.2(b).) The plaintiff may seek to limit the amount of the bond by showing the bond would cause it to suffer undue economic hardship. (§ 529.2(b).) The court must take into consideration any admitted evidence of the plaintiff's economic hardship, and must avoid causing the plaintiff undue economic hardship, even if this would require that the court impose no bond. (§ 529.2(b).) The bond shall in no case exceed \$500,000. (§ 529.2(b).)

RPI seeks a \$500,000 bond. RPI submits evidence that delay caused by this proceeding is likely to result in forfeiture of \$33,598,519. (Senna Decl., ¶¶ 7-10.) RPI has also shown it has already incurred a loan of \$28,500,000 for construction, which would ordinarily be repaid through the obtained tax credits. (Senna Decl., ¶ 9.) RPI has shown it has incurred over \$1,000,000 in predevelopment debt and spent \$967,000 to pay predevelopment costs. (Senna Decl., ¶ 10.) Even presuming the entire Project is halted and there are no expenditures beyond those attested in the Senna Declaration, RPI will not recover its expenditures and will be obligated to repay the predevelopment debt for costs around \$2,000,000.

Based on this showing, a \$500,000 undertaking at the statutory maximum of \$500,000 is appropriate.

Petitioner argues such a bond would cause undue hardship because it cannot afford a \$500,000 bond. Specifically, Petitioner argues that RPI's evidence does not establish Petitioner can pay a \$500,000 bond, that Petitioner has no revenue and has been paying for mortgage, insurance, maintenance, upkeep, and taxes out of pocket, and that Petitioner would be chilled from pursuing appellate review if compelled to post a \$500,000 bond.

This argument improperly shifts the burden. Section 529.2, subdivision (b) provides that “the plaintiff may seek to limit the amount of the undertaking by presenting admissible evidence that filing an undertaking will cause it...undue economic hardship.” (§ 529.2(b), emphasis added.) The only relevant admitted evidence Petitioner offers is its assertion that it operates at a deficit and lacks sufficient funds to “accommodate” a \$500,000 bond. (Netty Decl., ¶¶ 3-4.) This showing provides the Court no basis to determine what amount, if any, would avoid undue hardship. Where Petitioner bears the burden to make that showing, the Court will not eliminate the bond based on a failure to do so.

Moreover, Petitioner’s evidence is insufficient on its face. The assertion that the entity is operating at a deficit does not establish inability to post a bond; businesses may operate at a deficit while still being able to absorb discrete expenses. Petitioner also acknowledges it is paying litigation costs in this matter and on appeal. (Netty Decl., ¶ 3.) The Court has discretion to evaluate hardship, and Petitioner’s conclusory statements of inability to pay are unpersuasive. (See *Save Livermore Downtown v. City of Livermore*, supra, 87 Cal.App.5th at 1135, 1138.)

Accordingly, the Court will set the bond at \$500,000.

IV.

Conclusion

The Court has jurisdiction to require Petitioner to post a bond under CCP section 529.2, and RPI has shown the action was brought to delay the project. The motion is granted. Petitioner is ordered to post a bond in the amount of \$500,000 within fifteen (15) days.

Date: September 8, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the Court at SMCDEPT834@lacourt.ca.gov with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the Court may take the matter off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the matter without leave.

[1]

All further statutory references are to the CCP unless otherwise stated.

[2]

In the Appeal, Petitioner is styled "Appellant".

[3]

In the Appeal, RPI is styled "Respondent".

[4]

Petitioner's position has been inconsistent across its filings. In Petitions 154 and 961, Petitioner asserted six causes of action and represented that each was legally sufficient. However, in opposing Respondent's and RPI's subsequent motions for attorney fees following the Court's rulings on Special Motions 154 and 961, Petitioner

argued that several of its claims, including quiet title, “failures to comply,” and due process, were facially defective, and further asserted that the CEQA analysis, “arguably, the only difficult analysis required to be performed,” was largely duplicative. (Pet. Opp. to Att’y Fee Mot., pp. 13-16.) Petitioner now contends again that its claims are meritorious.

[5]

Petitioner objected to this evidence, but not on the grounds that it was new evidence on reply. The Court overruled Petitioner’s objections above.